

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
HONORABLE MICHAEL L. MAU
1050 Mission Road, South San Francisco
Department 20, Courtroom L
JUNE 26, 2026 at 9:00 AM

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept20@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5120 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 8:50 am.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 576 6143 Password: 142907

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
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09:00 AM

23-CIV-00924 GENENTECH, INC. VS. MILLENNIUM PHARMACEUTICALS, INC.

LINE 1

GENENTECH, INC.

JEFFREY E. FAUCETTE

MILLENNIUM PHARMACEUTICALS, INC.

BRIAN CANNON

DEFENDANT MILLENNIUM PHARMACEUTICAL INC.'S MOTION TO SEAL

TENTATIVE RULING:

The Motion to Seal by Defendant Millennium Pharmaceuticals, Inc. (“Millennium”), is GRANTED IN PART. However, PARTIES ARE TO APPEAR at the hearing (Zoom is ok) to discuss scheduling as addressed in detail below.

As a procedural matter, the Notice of Motion contains an incorrect address for Department 20. Department 20 is located at 1050 Mission Road, Courtroom L, in South San Francisco, CA 94080.

Millennium brings this Motion to file documents under seal in connection with its summary judgment motion. “Unless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules of Court, Rule 2.550(c).) A court order is required to file documents under seal. (Cal. Rules of Court, rule 2.551(a).) A record may not be filed under seal based solely on the agreement or stipulation of the parties. (*Ibid.*) The court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

(Cal. Rules of Court Rule 2.550(d).)

The court finds that Millennium has established these factors to support filing under seal Sections 3.01, 3.02 and 3.03 of Exhibits B and C to the Huddle Declaration, as well as Exhibits E, I, M and W to the Huddle Declaration. Therefore, the Motion to these exhibits is GRANTED.

Millennium “also seeks to redact portions of its Motion for Summary Judgment that reference the non-public terms and information in the aforementioned exhibits.” (Millennium’s Notice of Motion filed May 1, 2026, p. 2:15-16.) Millennium fails to specifically identify these redacted portions in its Motion. This failure is problematic because Millennium also filed a Notice of Lodging Documents Conditionally Under

Seal at the same time it filed this Motion. (Millennium's Notice of Lodging Documents filed May 1, 2026.) Millennium's Notice of Lodging pertains to the following documents:

- Notice of Motion and Motion for Summary Judgment
- Declaration of Roger Huddle
- Separate Statement of Undisputed Material Facts
- Exhibit A to the Declaration of Roger Huddle (Research and License Agreement between City of Hope Research Institute and Genentech, Inc., effective August 1, 1981)
- Exhibit D to the Declaration of Roger Huddle (Non-Exclusive License Agreement ("Cabilly Co-expression Patents") between Genentech, Inc. and CSL Limited, effective June 13, 2006)
- Exhibit F to the Declaration of Roger Huddle (Expert Report of E. Fintan Walton in *MedImmune, Inc. v. Genentech, Inc. and City of Hope*, No. CV03-2567 (C.D. Cal.), dated February 29, 2008)
- Exhibit J to the Declaration of Roger Huddle (Non-Exclusive License Agreement ("Cabilly Coexpression Patents") between Genentech, Inc. and Samsung Bioepis Co. Ltd., effective July 20, 2016)
- Exhibit K to the Declaration of Roger Huddle (Non-Exclusive License Agreement ("Cabilly Coexpression Patents") between Genentech, Inc. and Kyowa Hakko Kirin Co., Ltd., effective September 1, 2017)
- Exhibit L to the Declaration of Roger Huddle (Non-Exclusive License Agreement ("Cabilly Coexpression Patents") between Genentech, Inc. and Kyowa Hakko Kirin Co., Ltd., effective December 1, 2017)
- Exhibit Q to the Declaration of Roger Huddle (excerpt of the Felix Wong October 17, 2025 deposition transcript)
- Exhibit R to the Declaration of Roger Huddle (excerpt of the Timothy Schwartz November 7, 2025 deposition transcript)

(*Ibid.*) Thus, Millennium's Notice of Lodging also includes its Notice of Motion and Motion for Summary Judgment and its Separate Statement of Undisputed Material Facts without referencing the specific portions that are the subject of the Notice of Lodging. Millennium therefore fails to identify which portions of its summary judgment papers are redacted pursuant to its Motion to Seal and which portions are redacted pursuant to the Notice of Lodging.

The court finds that only page 12 of Millennium's Memorandum clearly references the exhibits that are the subject of Millennium's Motion to Seal, and it GRANTS the Motion to file under seal page 12 of the Memorandum. The Motion is DENIED to the remainder of Millennium's redacted Memorandum as well as Millennium's redacted Separate Statement.

Further, the Notice of Lodging is made pursuant to California Rules of Court, rule 2.551(b)(3). This procedure places the burden on the party that produced the documents subject to a confidentiality agreement or protective order to bring a motion to seal where the party that lodged the unredacted records does not intend to request to have the records sealed. (See Cal. Rules of Court, rule 2.551(b)(3).) If the party that was served with the notice of lodging fails to file a motion or an application to seal the records within 10 days or to obtain a court order extending the time to file such a motion or an application, the clerk must promptly transfer the documents to the public file. (*Id.*, at rule 2.551(b)(3)(B).) "If the party

files a motion or an application to seal within 10 days or such later time as the court has ordered, these documents are to remain conditionally under seal until the court rules on the motion or application and thereafter are to be filed as ordered by the court.” (*Ibid.*)

Genentech filed a pending motion to seal, but it does not address filing under seal the exhibits and moving papers in support of Millennium’s summary judgment motion. (See Genentech’s Notice of Motion to Seal filed June 12, 2026 [hearing on November 6, 2026].) Millennium served the Notice of Lodging on Genentech on May 1, 2026. (Proof of Service filed May 1, 2026.) Thus, the time for Genentech to bring a motion to file these documents under seal has expired, and the court finds these documents that are the subject of the Notice of Lodging may be placed in the court’s public records.

Since it is unclear whether Millennium may be asserting that some portions of the Memorandum and/or Separate Statement are subject to the procedure set forth in rule 2.551(b)(6), PARTIES ARE TO APPEAR to address how to proceed. “If the court denies the motion or application to seal, the moving party may notify the court that the lodged record is to be filed unsealed. This notification must be received within 10 days of the order denying the motion or application to seal, unless otherwise ordered by the court. On receipt of this notification, the clerk must unseal and file the record. If the moving party does not notify the court within 10 days of the order, the clerk must (1) return the lodged record to the moving party if it is in paper form or (2) permanently delete the lodged record if it is in electronic form.” (Cal. Rules of Court, rule, 2.551(b)(6).)

To the extent that the court is ordering the redacted portions of Millennium’s Memorandum (except as to page 12) and Separate Statement of Facts be placed in the court’s public records, Millennium is to re-file and serve these documents with the unredacted portions within ten days of the order instead of having the court clerk place them in the court’s records to ensure that they comply with this order.

Additionally, as noted Genentech has one pending motion to seal, filed June 12, 2026. Millennium has three additional pending motions to seal filed on May 11, 2026, June 12, 2026, and June 22, 2026. All four of these pending motions to seal, deal in some fashion with documents filed in support of or in opposition to the pending Motion for Summary Judgment (“MSJ”) and/or Motion for Summary Adjudication (“MSA”) both of which are calendared for July 17, 2026. These four motions to seal must be adjudicated before the MSJ/MSA so that there is a clear record of what documents may, or may not, be utilized for the MSJ/MSA. See, CRC Rule 2.551(b)(6). Parties are advised that it will not be possible for the Court to hear all four motions to seal before July 17, 2026. Therefore, parties are to meet and confer on scheduling, as it is highly probable there will be a continuance and resetting of all four motions to seal, the MSJ/MSA, Pretrial and Trial dates.

As parties are required to appear, a contest of this tentative is not required and the tentative ruling shall become the order of the Court by Minute Order. Millennium’s counsel to prepare the Order after hearing.

09:00 AM

23-CIV-04084

SYLVIA ALVAREZ-LYNCH VS. MARK LAWRENCE CELLA, ET AL.

LINE 2

SYLVIA ALVAREZ-LYNCH
MARK LAWRENCE CELLA

SARA M. PETERS
MICHAEL J. DALEY

DEFENDANT: CROSS-COMPLAINANT: MARK CELLA, KEVIN BIANCHI'S MOTION FOR GOOD FAITH SETTLEMENT

TENTATIVE RULING:

Initially, the Court notes that Applicants have not provided the address for the hearing. Department 20 is located at the Northern Courthouse, Courtroom L, 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice “must specify” the location of the hearing].)

The Application for Determination of Good Faith Settlement (the “Application”) brought by Defendants Mark Lawrence Cella and Kevin Bianchi (collectively, “Applicants”) is GRANTED.

Background

The operative First Amended Complaint (“FAC”) alleges that on or about February 12, 2023, Plaintiff was lawfully walking to her car in the parking lot of Defendant Grocery Outlet, Inc. in Pacifica, California, when Defendant Cella struck and ran her over with a vehicle owned

Applicants bring the instant Application asking the Court to find that Applicants’ settlement with Plaintiff for \$200,000.00, which was reached on December 3, 2025, is in good faith (Code Civ. Proc., § 877.6), and to dismiss with prejudice and bar against Applicants “any and all claims, including” any actual or potential claims for implied or equitable indemnity and contribution. (Proposed Order, 2:1.) Applicants ask the Court specifically to dismiss the Complaint and any current or future cross-complaints that may be filed against them by the other parties to this action. (Code Civ. Proc., § 877.6, subd. (c).)

Legal Standards Governing Determination That a Settlement Was Made in Good Faith

The Court determines whether a settlement was made in good faith pursuant to Code of Civil Procedure section 877.6. A determination that the settlement was made in good faith bars “any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.” (Code Civ. Proc., § 877.6, subd. (c).) “The party asserting the lack of good faith shall have the burden of proof on that issue.” (*Id.*, § 877.6, subd. (d).) More specifically:

Any party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors[.]

(Code of Civ. Proc., § 877.6, subd. (a)(1).)

[T]he intent and policies underlying section 877.6 require that a number of factors be taken into account including a rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the

financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants. [Citation.] Finally, practical considerations obviously require that the evaluation be made on the basis of information available at the time of settlement. A defendant's settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant's liability to be. [Citation.] The party asserting the lack of good faith, who has the burden of proof on that issue [citation], should be permitted to demonstrate, if he can, that the settlement is so far "out of the ballpark" in relation to these factors as to be inconsistent with the equitable objectives of the statute. Such a demonstration would establish that the proposed settlement was not a "settlement made in good faith" within the terms of section 877.6.

(*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499–500 [quotation marks omitted] (*Tech-Bilt*).)

While "[t]he *Tech-Bilt* factors are nonexhaustive and may not apply in all cases" (*Dole Food Co., Inc. v. Sup. Ct.* (2015) 242 Cal.App.4th 894, 909 (*Dole*) (internal quotation and citation omitted)), the Court of Appeal has opined that, "The ultimate determinant of good faith is whether the settlement is grossly disproportionate to what a reasonable person at the time of settlement would estimate the settlor's liability to be." (*City of Grand Terrace v. Superior Ct.* (1987) 192 Cal.App.3d 1251, 1262 (*City*) (citation omitted).) "The determination as to whether a settlement is in good faith is a matter left to the discretion of the trial court" (*Dole, supra*, 242 Cal.App.4th 894, 909 (internal citations omitted)).

Further, "where as here a written agreement does exist and the settlors want judicial confirmation that their settlement is in good faith, the settling parties *must* produce the agreement for the nonsettling party who opposes the motion." (*Mediplex of California, Inc. v. Superior Ct.* (1995) 34 Cal.App.4th 748, 754 (*Mediplex*) (emphasis added).) "The nonsettling defendant must be given an opportunity to determine independently whether the undisclosed terms arguably have an effect on reducing the offset" (*Mediplex, supra*, 34 Cal.App.4th 748, 749), and "a party may not both seek confirmation of a settlement agreement and withhold it from nonsettling defendants on the grounds of confidentiality" (*Mediplex, supra*, 34 Cal.App.4th 748, 752 (quotation and citation omitted)).

The Motion Is Granted.

Here, Applicants attach a copy of the settlement agreement to the Declaration of their counsel for the review of other parties, as due process requires. Applicants' Proof of Service filed on May 12, 2026, shows the certified return mail receipts for all parties, and no party contests any of the points made herein, nor any aspect of the settlement agreement. The deadline to file an Opposition fell on June 12, 2026, and no Opposition has been filed.

The *Tech-Bilt* factors

A Rough Approximation of Plaintiffs' Total Recovery and the Settlor's Proportionate Liability; and The Amount Paid in Settlement

Plaintiff and Applicants have agreed to Applicants' consideration of \$200,000.00 given for Plaintiff's full and final release. (Daley Decl., ¶¶ 5-6, & Exh. B.) Applicants assert that this agreement is fair, and is proportional to Applicants' share of Plaintiff's claimed liability and damages.

The Allocation of Settlement Proceeds Among Plaintiffs

There is only one Plaintiff who would receive all settlement proceeds.

Recognition That a Settlor Should Pay Less in Settlement Than He Would If He Were Found Liable After a Trial

This factor is recognized.

The Financial Conditions and Insurance Policy Limits of Settling Defendants

Applicants have tendered the full policy limits of each of their automobile insurance policies. (*Id.*, ¶ 6.) Those policies are the only ones applicable to Plaintiff's loss, and neither Applicant has coverage in excess of the \$100,000 policy of each. (*Ibid.*)

The Existence of Collusion, Fraud, or Tortious Conduct Aimed to Injure the Interests of Nonsettling Defendants.

Applicants' counsel declares that the settlement was reached after arms-length negotiation, without collusion, and in good faith. (*Id.*, ¶ 8.) There is nothing to rebut this contention.

Therefore, the Application for Determination of Good Faith Settlement by Defendants Mark Lawrence Cella and Kevin Bianchi is GRANTED in full.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

09:00 AM

23-CIV-04084

SYLVIA ALVAREZ-LYNCH VS. MARK LAWRENCE CELLA, ET AL.

LINE 3

SYLVIA ALVAREZ-LYNCH
MARK LAWRENCE CELLA

SARA M. PETERS
MICHAEL J. DALEY

DEFENDANT CHU MANAGEMENT, INC'S MOTION FOR GOOD FAITH SETTLEMENT

TENTATIVE RULING:

Initially, the Court notes that Applicant has not provided the address for the hearing. Department 20 is located at the Northern Courthouse, Courtroom L, 1050 Mission Road, South San Francisco, CA 94080. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Defendant and Cross-defendant Chu Management, Inc.'s Application for Determination of Good Faith Settlement is DENIED WITHOUT PREJUDICE.

Defendant and Cross-defendant Chu Management, Inc. ("Chu") seeks an order finding its settlement with Plaintiff Sylvia Alvarez-Lynch to have been made in good faith, discharging it from liability for claims for equitable indemnity or contribution, and dismissing and barring all cross-complaints filed and to be filed against it. Defendant and Cross-complainant Grocery Outlet, Inc. ("GOI") opposes.

A. Legal Standard on Application to Determine Good Faith Settlement

The Court determines whether a settlement was made in good faith pursuant to Code of Civil Procedure section 877.6. A determination that the settlement was made in good faith bars "any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." (Code Civ. Proc., § 877.6, subd. (c).) "The party asserting the lack of good faith shall have the burden of proof on that issue." (*Id.*, § 877.6, subd. (d).) More specifically:

Any party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors[.]

(Code of Civ. Proc., § 877.6, subd. (a)(1).)

[T]he intent and policies underlying section 877.6 require that a number of factors be taken into account including a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling

defendants. [Citation.] Finally, practical considerations obviously require that the evaluation be made on the basis of information available at the time of settlement. A defendant's settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant's liability to be. [Citation.] The party asserting the lack of good faith, who has the burden of proof on that issue [citation], should be permitted to demonstrate, if he can, that the settlement is so far "out of the ballpark" in relation to these factors as to be inconsistent with the equitable objectives of the statute. Such a demonstration would establish that the proposed settlement was not a "settlement made in good faith" within the terms of section 877.6.

(*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499–500 [quotation marks omitted] (*Tech-Bilt*)).

While "[t]he *Tech-Bilt* factors are nonexhaustive and may not apply in all cases" (*Dole Food Co., Inc. v. Sup. Ct.* (2015) 242 Cal.App.4th 894, 909 (*Dole*) (internal quotation and citation omitted)), the Court of Appeal has opined that, "The ultimate determinant of good faith is whether the settlement is grossly disproportionate to what a reasonable person at the time of settlement would estimate the settlor's liability to be." (*City of Grand Terrace v. Superior Ct.* (1987) 192 Cal.App.3d 1251, 1262 (*City*) (citation omitted).) "The determination as to whether a settlement is in good faith is a matter left to the discretion of the trial court" (*Dole, supra*, 242 Cal.App.4th 894, 909 (internal citations omitted)).

Further, "where as here a written agreement does exist and the settlors want judicial confirmation that their settlement is in good faith, the settling parties *must* produce the agreement for the nonsettling party who opposes the motion." (*Mediplex of California, Inc. v. Superior Ct.* (1995) 34 Cal.App.4th 748, 754 (*Mediplex*) (emphasis added).) "The nonsettling defendant must be given an opportunity to determine independently whether the undisclosed terms arguably have an effect on reducing the offset" (*Mediplex, supra*, 34 Cal.App.4th 748, 749), and "a party may not both seek confirmation of a settlement agreement and withhold it from nonsettling defendants on the grounds of confidentiality" (*Mediplex, supra*, 34 Cal.App.4th 748, 752 (quotation and citation omitted)).

Relevantly for this particular motion, "the determination whether the settlement was in good faith must be based on competent, admissible evidence." (*Brehm Communities v. Superior Court* (2001) 88 Cal.App.4th 730, 736 (*Brehm*)). While the party asserting a lack of good faith bears the burden of proving bad faith, an application must be denied if the applicant fails to "present competent evidence" of the relevant facts necessary for consideration of the most pertinent *Tech-Bilt* factors. (*Id.*, at p. 733.)

B. Insufficient Information Provided to Determine Good Faith

The very first *Tech-Bilt* factor is "a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability." (*Tech-Bilt, supra*, at p. 499.) Chu presents no evidence whatsoever of any approximation of Alvarez-Lynch's total recovery in this case (see *Brehm, supra*, at p. 735 ["matters set forth in memoranda of points and authorities are not evidence"]), but GOI presents evidence that Alvarez-Lynch herself values her case at more than one million dollars in total. (May 18, 2026 Declaration of G. Michael Brown, ¶ 7.)

Alvarez-Lynch's operative pleading, the First Amended Complaint, is somewhat vague as to the manner and cause of the alleged motor vehicle accident causing her unspecified injuries, such that the degree to which the accident was caused by negligent driving versus the absence of "speed bumps, speed humps/pillows, or any signs ... [or] paint, crosswalks, signs, beacons, or lights on the roadway" is not

evident. (Jan. 30, 2026 First Amended Complaint, ¶ 34.) Even between those defendants allegedly liable for the premises on which the accident occurred (rather than for the operation and provision of the car that struck her), Alvarez-Lynch alleges that three separate defendants are each fully liable for all kinds of omissions. (*Id.*, at ¶¶ 31–41.)

Thus, to assess Chu’s proportionate liability—one of the most important *Tech-Bilt* factors—there must be some evidence as to its potential share of liability as compared to the other four defendants (not including the ninety-five other, fictitiously named defendants as well). Chu argues that the accident occurred in the parking lot in front of the building in which Chu operates its business and it is not responsible for maintaining the accident site. However, as mentioned above, argument is not evidence. The only evidence provided is Chu’s agent’s *answer* at a deposition (the full question has been omitted) stating that Chu “run[s] the daily operations of the store inside the building” and that “GOI has no control over that.” (Jun. 18, 2026 Reply, exh. A.) Setting aside the fact that this evidence is not presented in compliance with rule 3.1116 of the California Rules of Court—deposition testimony presented as an exhibit must include a title page and the relevant testimony must be highlighted—the fact that Chu operates the inside of the store does nothing to establish that it is not responsible for any alleged omissions outside the store.

Therefore, there is insufficient evidence to assess the first *Tech-Bilt* factor, let alone whether the amount paid in settlement is proportional to the share of liability and equitable to Chu’s codefendants. As stated above, while the party objecting to the application has the burden of demonstrating bad faith—that the settlement is ‘not in the ballpark’—there must be *some* evidence establishing where the ballpark *is*. While a rough approximation is all that is needed, a court must make an “*educated guess*.” (*North County Contractor’s Assn. v. Touchstone Ins. Services* (1994) 27 Cal.App.4th 1085, 1095 [*italics added*].) “Without the facts, in a contested hearing, it is impossible for a court to exercise its discretion in an appropriate fashion.” (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1263.)

Accordingly, the application is denied without prejudice to a renewed motion or application, thereby also allowing GOI to conduct discovery as it requested. (See *City of Grand Terrace, supra*, at p. 1265.)

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

09:00 AM

24-CIV-00269

HAMID KHAZAELI VS. DAVID A BREWER, ET AL.

LINE 4

HAMID KHAZAELI
DAVID A. BREWER

PRO PER
JOHN S. CLAASSEN

PLAINTIFF HAMID KHAZAELI'S MOTION TO COMPEL

TENTATIVE RULING:

Plaintiff Hamid Khazaeli's unopposed Motion to Compel Further Responses to Plaintiff's Form Interrogatories Employment Law, Set No. One from David A. Brewer, Former NT Corporation, Notify Technology Corporation, Paul F. Depond, Robert Polychron (collectively "Defendants") filed October 20, 2025, 2025, is DENIED. Plaintiff's request for sanctions is DENIED.

A. Background

The underlying action for FEHA-based discrimination and retaliation arises from plaintiff's former employment with Notify Technology Corporation from 2006 to 2012 as enterprise sales manager. (FAC ¶9.) The named defendants include three individual non-employers who testified for the defense at a 2020 in one of plaintiff's former lawsuits regarding his employment tenure. (FAC ¶ 15.) Plaintiff seeks damages in excess of \$60,000,000. (FAC ¶31.) Because this matter has an extensive procedural history of which the parties are well-versed the Court does not repeat it here.

The instant motion, filed October 20, 2025, seeks to compel further responses to Plaintiff's Form Interrogatories Employment Law, Set No. One,

- No. 211.1 from NTC,
- Nos. 200.1-200.4, 201.1- 201.7, 206.2-206.3, 207.2, 208.1, 211.2, 211.3, 214.1, 215.1, 215.2, 216.1 from all Defendants;

and challenges the validity of DocuSign electronic signatures from Defendants. Plaintiff also seeks a privilege log.

Plaintiff contends that the responses provided are ambiguous, evasive, incomplete, vague and contain meritless objections. Plaintiff requests sanctions of judgment against each of BREWER, FNTC, NTC, DEPOND, POLYCHRON, Attorney Claassen, and Claassen Law Corporation plus \$1,000 on each of BREWER, FNTC, NTC, DEPOND, POLYCHRON, Attorney Claassen, and Claassen Law Corporation plus the costs and fees of \$1,000 under Code of Civil Procedure sections 2023.030, 2023.040, 2023.050. The motion is unopposed.

B. Legal Standard

"[T]he discovery statutes vest a wide discretion on the trial court in granting or denying discovery." (*Greyhound Corp. v. Superior Court In and For Merced County* (1961) 56 Cal.2d 355, 378 [superseded by statute].) " 'The standard of review generally applicable to review of discovery orders is abuse of discretion, as management of discovery lies within the sound discretion of the trial court. [Citations.]'

[Citation.]” (*Haniff v. Superior Court* (2017) 9 Cal.App.5th 191, 198.)” (*Manuel v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 719, 727.)

Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.

(Code Civ. Proc., § 2017.010.)

Parties are reminded that “a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.)

Code of Civil Procedure, section 2030.010 provides

(a) Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by propounding to any other party to the action written interrogatories to be answered under oath. (b) An interrogatory may relate to whether another party is making a certain contention, or to the facts, witnesses, and writings on which a contention is based. An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact or would be based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial.

A party may respond to interrogatories, in writing and under oath by (1) providing an answer containing the information sought, (2) exercising the option to produce writings, or (3) by objecting to the particular interrogatory. (Code Civ. Proc., § 2030.210 subd. (a).) Code of Civil Procedure section 2030.220 states

(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.

Pursuant to Code of Civil Procedure section 2030.300, the propounding party has 45 days of the service of the verified response, or any supplemental verified response, to file a motion to compel or the propounding party waives any right to compel a further response. (Code Civ. Proc., § 2030.300, subd. (c).)

If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer. (*Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220-221 [regarding interrogatories specifically].) To do so, the responding party must affirmatively show that the burden of responding would be so great, and the benefit of the information sought would be so minimal, that it would defeat the ends of justice to require the party to answer.

(*Columbia Broadcasting System, Inc. v. Superior Court* (1968) 263 Cal.App.2d 12, 19.)

C. Discussion

Initially, the Court finds the instant motion untimely. Plaintiff served the instant interrogatories on October 9, 2024. Defendants served their initial responses on January 27, 2025 (Pltf. Sep. Stmt. Ex. 2) and amended response on March 28, 2025. (Pltf. Sep. Stmt. Ex. 5.) Absent any agreement between parties to extend the time to file the instant motion, any motion to compel a further response was due no later than May 12, 2025, under Code of Civil Procedure section 2030.300. Plaintiff filed the instant motion on October 20, 2025, or 206 days late.

Plaintiff argues that an informal discovery conference (“IDC”) was scheduled for April 15, 2025, then continued to June 5, 2025, then to June 9, 2025, and finally held on July 24, 2025. Apparently though not clearly stated, plaintiff would like the Court to toll, or in other words pause, the time elapsed due to the IDC hearings, however the Court notes there is no such basis to do so in the relevant code section nor has Plaintiff presented any clear agreement to toll. Additionally, whether the hearings were continued on plaintiff’s request, defendants’ request, or the Court’s, is not stated and therefore there is no basis for equitable tolling. Regardless, **even if** the Court were required under the statute to toll the time for the IDC hearings, which it is not, the statutory “clock” would have started running on July 24, 2025, rendering Monday September 8, 2025, the deadline for the instant motion rendering the October 20, 2025 filing 42 days late. Thus, **under any scenario, the motion is untimely** and plaintiff has waived any right to compel a further response to the interrogatories.

In an abundance of caution, however, the Court exercises its discretion to review the responses on a substantive basis. To avoid repetition, the Court notes that all discovery responses are found in Plaintiff’s declaration filed in support of the instant motion Exhibit 2, and all amended discovery responses are found in Plaintiff’s declaration filed in support of the instant motion Exhibit 5. Upon review of these exhibits as well as the arguments set forth in plaintiff’s separate statement, the Court rules as follows:

With respect to NTC

211.1: Identify each type of BENEFIT to which the EMPLOYEE would have been entitled, from the date of the ADVERSE EMPLOYMENT ACTION to the present, if the ADVERSE EMPLOYMENT ACTION had not happened and the EMPLOYEE had remained in the same job position. For each type of benefit, state the amount the EMPLOYER would have paid to provide the benefit for the EMPLOYEE during this time period and the value of the BENEFIT to the EMPLOYEE.

RESPONSE: None, as the responding party has not been an “employer”.

AMENDED RESPONSE: Responding Party is not an employer and, as a non-employer, has no benefits to offer anyone.

ARGUMENT: “Defendants including Defendant NTC in response to initial disclosure themselves produced several years worth of redacted W2 forms issued by NTC as an employer which had been employed five or more employees for each year. Therefore NTC response is false. NTC must have responded truthfully to this interrogatory. NTC refused to amend this response.” (Sep. Stmt. p.44.)

RULING: DENY. The interrogatory has been answered. Plaintiff's speculation regarding the veracity of the answer does not support compelling a further amended response.

With respect to all Defendants

200.1 Do you contend that the EMPLOYMENT relationship was at "at will"? If so: (a) state all facts upon which you base this contention; (b) state the name, ADDRESS, and telephone number of each PERSON who has knowledge of those facts; and (c) identify all DOCUMENTS that support your contention.

Defendant Depond RESPONSE: Not applicable as the plaintiff does not allege an employment relationship in this Action but rather the unlawful absence of one.

AMENDED RESPONSE: none.

ARGUMENT: Here Plaintiff is simply asking defendants to identify whether the previous employment was at will.

RULING: DENY. A complete answer has been provided.

200.2 Do you contend that the EMPLOYMENT relationship was not "at will"? If so: (a) state all facts upon which you base this contention; (b) state the name, ADDRESS, and telephone number of each PERSON who has knowledge of those facts; and (c) identify all DOCUMENTS that support your contention.

RESPONSE: Vague, ambiguous and not applicable as the plaintiff does not allege an employment relationship in this Action but rather the unlawful absence of one.

AMENDED RESPONSE: none provided.

ARGUMENT: The interrogatory is asking for specific information (i.e., at will, etc.). Each answer in response to interrogatories shall be as complete and straightforward as the information available to the responding party permits. (Code Civ. Pro. § 2030.220.)

RULING: DENY. A complete answer has been provided.

200.3 Do you contend that the EMPLOYMENT relationship was governed by any agreement—written, oral, or implied? If so: (a) state all facts upon which you base this contention; (b) state the name, ADDRESS, and telephone number of each PERSON who has knowledge of those facts; and (c) identify all DOCUMENTS that support your contention.

RESPONSE: Vague, ambiguous, and not applicable as the plaintiff does not allege an employment relationship in this Action but rather the unlawful absence of one.

AMENDED RESPONSE: none provided.

ARGUMENT: The interrogatory is asking for specific information (i.e., agreement, etc.). Each answer in response to interrogatories shall be as complete and straightforward as the information available to the responding party permits. (Code Civ. Pro. § 2030.220.)

RULING: DENY. A complete answer has been provided.

200.4 Was any part of the parties' EMPLOYMENT relationship governed in whole or in part by any written rules, guidelines, policies, or procedures established by the EMPLOYER? If so, for each DOCUMENT containing the written rules, guidelines, policies, or procedures: (a) state the date and title

of the DOCUMENT and a general description of its contents; (b) state the manner in which the DOCUMENT was communicated to employees; and (c) state the manner, if any, in which employees acknowledged either receipt of the DOCUMENT or knowledge of its contents.

RESPONSE: Responding Party objects to this interrogatory on the grounds that it is vague and ambiguous because it could refer either to matter upon which liability is alleged in Plaintiff's First Amended Complaint for failure to hire and failure to provide a reference or it could refer to matter on which liability was asserted in previous lawsuits, including a 2012 lawsuit and an approximately 2014 arbitration against Former NT for wrongful termination. Responding Party will interpret this interrogatory as seeking information about matter upon which liability in this Action is based. Subject to and without waiver of this objection, Responding Party responds as follows: not applicable as the plaintiff does not allege an employment relationship in this Action but rather the unlawful absence of one.

AMENDED RESPONSE: none

ARGUMENT: The interrogatory is asking for specific information (i.e., policies, etc.). Each answer in response to interrogatories shall be as complete and straightforward as the information available to the responding party permits. (Code Civ. Pro. § 2030.220.) There is nothing vague and ambiguous about the 2012 and 2014 events.

RULING: DENY. A complete answer has been provided.

201.1 Was the EMPLOYEE involved in a TERMINATION? If so: (a) state all reasons for the EMPLOYEE'S TERMINATION; (b) state the name, ADDRESS, and telephone number of each PERSON who participated in the TERMINATION decision; (c) state the name, ADDRESS, and telephone number of each PERSON who provided any information relied upon in the TERMINATION decision; and (d) identify all DOCUMENTS relied upon in the TERMINATION decision.

RESPONSE: No.

AMENDED RESPONSE:

ARGUMENT: Responding Part(ies) agreed to amend its response initially, but refused to do so later. After the 7/24/25 IDC, Plaintiff attempted to further meet and confer regarding his Form Interrogatories, Set No. One, which was failed.

RULING: DENY. The answer is complete.

201.2 Are there any facts that would support the EMPLOYEE'S TERMINATION that were first discovered after the TERMINATION? If so: (a) state the specific facts; (b) state when and how EMPLOYER first learned of each specific fact; (c) state the name, ADDRESS, and telephone number of each PERSON who has knowledge of the specific facts; and (d) identify all DOCUMENTS that evidence these specific facts.

RESPONSE: Responding Party objects to this interrogatory on the grounds that it could refer either to matter upon which liability is alleged in Plaintiff's First Amended Complaint for failure to hire and failure to provide a reference or it could refer to matter on which liability was asserted in previous lawsuits, including a 2012 lawsuit and an approximately 2014 arbitration against Former NT for wrongful termination. Responding Party will interpret this interrogatory to seek information about matter upon which liability is based in this Action. Subject to and without waiver of this objection, Responding Party responds as follows: not applicable.

AMENDED RESPONSE: none filed

ARGUMENT: Responding Part(ies) agreed to amend its response initially but refused to do so later. After the 7/24/25 IDC, Plaintiff attempted to further meet and confer regarding his Form Interrogatories, Set No. One, which failed. Based on the above, this court is encouraged to order the Responding Party to provide an amended fully compliant with the Code of Civil Procedure and truthful response.

RULING: DENY. A complete response has been provided.

201.3 Were there any other ADVERSE EMPLOYMENT ACTIONS, including (the asking party should list the ADVERSE EMPLOYMENT ACTIONS): Illegal harassment If so, for each action, provide the following: (a) all reasons for each ADVERSE EMPLOYMENT ACTION; (b) the name, ADDRESS, and telephone number of each PERSON who participated in making each ADVERSE EMPLOYMENT ACTION decision; (c) the name, ADDRESS, and telephone number of each PERSON who provided any information relied upon in making each ADVERSE EMPLOYMENT ACTION decision; and (d) the identity of all DOCUMENTS relied upon in making each ADVERSE EMPLOYMENT ACTION decision.

RESPONSE: No.

AMENDED RESPONSE: none provided.

ARGUMENT: The interrogatory is asking for specific information (i.e., adverse employment action, etc.). Each answer in response to interrogatories shall be as complete and straightforward as the information available to the responding party permits. (Code Civ. Pro. § 2030.220.) (See also Deyo v. Kilbourne, (1978) 83 Cal.App.3d 771, 783 [“Answers must be complete and responsive...”])

RULING: DENY. A complete response has been provided.

201.4 Was the TERMINATION or any other ADVERSE EMPLOYMENT ACTIONS referred to in Interrogatories 201.1 through 201.3 based in whole or in part on the EMPLOYEE'S job performance? If so, for each action: (a) identify the ADVERSE EMPLOYMENT ACTION; (b) identify the EMPLOYEE'S specific job performance that played a role in that ADVERSE EMPLOYMENT ACTION; (c) identify any rules, guidelines, policies, or procedures that were used to evaluate the EMPLOYEE'S specific job performance; (d) state the names, ADDRESSES, and telephone numbers of all PERSONS who had responsibility for evaluating the specific job performance of the EMPLOYEE; (e) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of the EMPLOYEE'S specific job performance that played a role in that ADVERSE EMPLOYMENT ACTION; and (f) describe all warnings given with respect to the EMPLOYEE'S specific job performance.

RESPONSE: Not applicable.

AMENDED RESPONSE: none provided.

ARGUMENT: The interrogatory is asking for specific information (i.e., EMPLOYEE'S performance, etc.). This is important background information and history. Responding Part(ies) understood exactly it relates to 2012 and 2014 showing fully familiar with them, but failed and refused to provide a proper response. 2012 and 2014 events are present in the First Amended Complaint. Illegal harassment and failure to hire and provide employment verifications were clearly alleged and are central in the First Amended Complaint in addition to evidence produced in opposition to Defendants' Anti-SLAPP motion. These are directly related to the subject matter of this litigation. Plaintiff requests a “truthful” response.

RULING: DENY. A complete response has been provided. No basis has been provided to the Court, other than Plaintiff's unsupported speculation, that defendants' answer(s) lack veracity.

201.5 Was any PERSON hired to replace the EMPLOYEE after the EMPLOYEE'S TERMINATION or demotion? If so, state the PERSON'S name, job title, qualifications, ADDRESS and telephone number, and the date the PERSON was hired.

RESPONSE: Not applicable.

AMENDED RESPONSE: None provided.

ARGUMENT: Adverse employment actions are central issues of this litigation. Propounding party is simply asking who was hired.

RULING: DENY. A complete response has been provided.

201.6 Has any PERSON performed any of the EMPLOYEE'S former job duties after the EMPLOYEE'S TERMINATION or demotion? If so: (a) state the PERSON'S name, job title, ADDRESS, and telephone number; (b) identify the duties; and (c) state the date on which the PERSON started to perform the duties.

RESPONSE: Not applicable.

AMENDED RESPONSE: None provided.

ARGUMENT: Propounding party is simply asking who did the job. Responding Part(ies) agreed to amend its response initially but refused to do so later. After the 7/24/25 IDC, Plaintiff attempted to further meet and confer regarding his Form Interrogatories, Set No. One, which failed.

RULING: DENY. A complete response has been provided. No basis has been provided to the Court, other than Plaintiff's unsupported speculation, that defendants' answer(s) lack veracity.

201.7 If the ADVERSE EMPLOYMENT ACTION involved the failure or refusal to select the EMPLOYEE (for example, for hire, promotion, transfer, or training), was any other PERSON selected instead? If so, for each ADVERSE EMPLOYMENT ACTION, state the name, ADDRESS, and telephone number of each PERSON selected; the date the PERSON was selected; and the reason the PERSON was selected instead of the EMPLOYEE .

RESPONSE: Not applicable as there was no adverse employment application.

AMENDED RESPONSE: None provided.

ARGUMENT: Adverse employment actions are central issues of this litigation. Propounding party is simply asking who was selected. Based on the above, this court is encouraged to order the Responding Party to provide an amended fully compliant with the Code of Civil Procedure and truthful response.

RULING: DENY. A complete response has been provided. No basis has been provided to the Court, other than Plaintiff's unsupported speculation, that defendants' answer(s) lack veracity.

206.2 State the name and ADDRESS of each agent or employee of the EMPLOYER who responded to any inquiries regarding the EMPLOYEE after the EMPLOYEE'S TERMINATION.

RESPONSE: Not applicable, as Responding Party is not alleged to have said anything about the plaintiff in the First Amended Complaint.

AMENDED RESPONSE: None Provided.

ARGUMENT:

RULING: DENY. A complete response has been provided.

206.3 State the name and ADDRESS of the recipient and the substance of each post-TERMINATION statement PUBLISHED about EMPLOYEE by any agent or employee of EMPLOYER.

RESPONSE: Not applicable, as Responding Party is not alleged to have said anything about the plaintiff in the First Amended Complaint

AMENDED RESPONSE: None provided.

ARGUMENT: The interrogatory is asking for specific information (i.e., who and what received statement PUBLISHED about EMPLOYEE, etc.) This interrogatory is not dependent on anything alleged to have been said about the plaintiff in the First Amended Complaint. Propounding party is simply asking who and what statement PUBLISHED about EMPLOYEE. It cannot become more relevant than this.

RULING: DENY. A complete response has been provided. No basis has been provided to the Court, other than Plaintiff's unsupported speculation, that defendants' answer(s) lack veracity.

207.2 Did the EMPLOYEE complain to the EMPLOYER about any of the unlawful conduct alleged in the PLEADINGS? If so, for each complaint: (a) state the date of the complaint; (b) state the nature of the complaint; (c) state the name and ADDRESS of each PERSON to whom the complaint was made; (d) state the name, ADDRESS, telephone number, and job title of each PERSON who investigated the complaint; (e) state the name, ADDRESS, telephone number, and job title of each PERSON who participated in making decisions about how to conduct the investigation; (f) state the name, ADDRESS, telephone number, and job title of each PERSON who was interviewed or who provided an oral or written statement as part of the investigation of the complaint; (g) state the nature and date of any action taken in response to the complaint; (h) state whether the EMPLOYEE who made the complaint was made aware of the actions taken by the EMPLOYER in response to the complaint, and, if so, state how and when; (i) identify all DOCUMENTS relating to the complaint, the investigation, and any action taken in response to the complaint; and (j) state the name, ADDRESS, and telephone number of each PERSON who has knowledge of the EMPLOYEE'S complaint or the EMPLOYER'S response to the complaint.

RESPONSE: Responding Party objects to this interrogatory on the grounds that the word "complain" is undefined, vague and ambiguous. In the context of this lawsuit, it could refer to his direct testimony or allegations during a trial in early 2020 against Responding Party or "complain" could refer to utilizing an employer's informal channels to bring allegations of impropriety to the attention of the employer.

Responding Party interprets this interrogatory to refer to the latter. Subject to and without waiver of the foregoing objection, Responding Party responds as follows: not that Responding Party is aware of.

NTC and Defendant Depond respond: No.

AMENDED RESPONSE: None provided.

ARGUMENT: Responding Parties also acquired significant amount information and evidence from Plaintiff's opposition to their Anti-SLAPP motion which were ignored in their responses here. This information is required for trial preparation. Propounding party is simply asking information about complaining to Responding Part(ies).

RULING: DENY. A complete response has been provided. No basis has been provided to the Court, other than Plaintiff's unsupported speculation, that defendants' answer(s) lack veracity.

208.1 Did the EMPLOYEE file a claim, complaint, or charge with any governmental agency that involved any of the material allegations made in the PLEADINGS? If so, for each claim, complaint, or charge: (a) state the date on which it was filed; (b) state the name and ADDRESS of the agency with which it was filed; (c) state the number assigned to the claim, complaint, or charge by the agency; (d) state the nature

of each claim, complaint, or charge made; (e) state the date on which the EMPLOYER was notified of the claim, complaint, or charge; (f) state the name, ADDRESS, and telephone number of all PERSONS within the governmental agency with whom the EMPLOYER has had any contact or communication regarding the claim, complaint, or charge; (g) state whether a right to sue notice was issued and, if so, when; and (h) state whether any findings or conclusions regarding the complaint or charge have been made, and, if so, the date and description of the agency's findings or conclusions

RESPONSE: Responding party states that he or it does not have knowledge sufficient to respond fully to this interrogatory and states that such information is equally available to the plaintiff.

AMENDED RESPONSE: None provided.

ARGUMENT: The interrogatory is asking for specific information (i.e., filing a claim, complaint, or charge with any governmental agency, etc.). Responding Part(ies) were obligated to provide the requested information. Responding Parties, at least, acquired this information from information and evidence produced with Plaintiff's opposition to their Anti-SLAPP motion and the First Amended Complaint which were ignored in their responses here.

RULING: DENY. A complete response has been provided.

211.2 Do you contend that the EMPLOYEE has not made reasonable efforts to minimize the amount of the EMPLOYEE'S lost income? If so: (a) describe what more EMPLOYEE should have done; (b) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of the facts that support your contention; and (c) identify all DOCUMENTS that support your contention and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT.

RESPONSE: Yes. Responding Party does not appear to be employed and does not appear to have attempted to find employment in good faith. (a) Work in good faith to obtain employment, (b) The plaintiff and Paul Depond (in care of Claassen Law Corp. 1990, N. California Blvd., 8th Floor, Walnut Creek, CA 94596, 925-04-3885).

AMENDED RESPONSE:

ARGUMENT: Defendants failed to respond to subsection (c)

RULING: DENY. The information sought is provided in subsection (b).

211.3 There is no argument relating to 211.3 thus this request is STRICKEN.

214.1 At the time of the ADVERSE EMPLOYMENT ACTION, was there in effect any policy of insurance through which you were or might be insured in any manner for the damages, claims, or actions that have arisen out of the ADVERSE EMPLOYMENT ACTION? If so, for each policy state: (a) the kind of coverage; (b) the name and ADDRESS of the insurance company; (c) the name, ADDRESS, and telephone number of each named insured; (d) the policy number; (e) the limits of coverage for each type of coverage contained in the policy; (f) whether any reservation of rights or controversy or coverage dispute exists between you and the insurance company; and (g) the name, ADDRESS, and telephone number of the custodian of the policy.

RESPONSE: No.

AMENDED RESPONSE: none

ARGUMENT: The interrogatory is asking for specific information about insurance coverage. "No." is incomplete, non-responsive, evasive and non code compliant response. Each answer in response to

interrogatories shall be as complete and straightforward as the information available to the responding party permits. (Code Civ. Pro. § 2030.220.) (See also *Deyo v. Kilbourne*, (1978) 83 Cal.App.3d 771, 783 [“Answers must be complete and responsive...”]) Plaintiff requires this information for evaluation, adjusctication and payment of alleged damages among under things. Responding parties were obligated to disclose all of their insurance information, but failed. For example, Defendant BREWER had admitted to the Plaintiff that he had such insurance. It also makes sense that Defendant BREWER to carry such insurance. He has been an attorney and a venture capitalist with tens of millions of dollars in wealth and investments. For someone at that level of wealth and investment to carry insurance or umbrella insurance is an essential part of business and life.

RULING: DENY. A complete response has been provided.

215.1 Have YOU OR ANYONE ACTING ON YOUR BEHALF interviewed any individual concerning the ADVERSE EMPLOYMENT ACTION? If so, for each individual state: (a) the name, ADDRESS, and telephone number of the individual interviewed; (b) the date of the interview; and (c) the name, ADDRESS, and telephone number of the PERSON who conducted the interview.

RESPONSE: Responding Party objects to this interrogatory on the grounds that, to the extent it seeks information about who the Responding Party’s attorney has chosen to interview, it seeks the disclosure of an attorney’s thoughts and impressions regarding which allegations are material and which allegations are not. Such information is protected by the attorney work product privilege and work product privilege and Responding Party objects to providing such information. Responding Party also objects to this interrogatory to the extent it seeks the disclosure of any other information or communications that are protected by the attorney-client privilege or attorney work product privilege. Subject to and without waiver of the foregoing objections, Responding Party responds as follows: no.

AMENDED RESPONSE: none

ARGUMENT: The interrogatory is asking for specific information about witnesses. “No.” is incomplete, non-responsive, evasive and non code compliant response. Responding parties were obligated to disclose all of their witness, but failed. For example, there are at least six or seven known fact character witnesses only for BREWER and FNTC that were not disclosed in the prior litigation. Similarly, there are additional witnesses for other defendants. Responding parties and their attorney also must have at least interviewed the Responding parties in this regard. They all must be disclosed.

RULING: DENY. A complete response has been provided.

215.2 Have YOU OR ANYONE ACTING ON YOUR BEHALF obtained a written or recorded statement from any individual concerning the ADVERSE EMPLOYMENT ACTION? If so, for each statement state: (a) the name, ADDRESS, and telephone number of the individual from whom the statement was obtained; (b) the name, ADDRESS, and telephone number of the individual who obtained the statement; (c) the date the statement was obtained; and (d) the name, ADDRESS, and telephone number of each PERSON who has the original statement or a copy.

RESPONSE: No.

AMENDED RESPONSE: none

ARGUMENT: The interrogatory is asking for specific information about evidence. “No.” is incomplete, non-responsive, evasive and non code compliant response. Responding parties were obligated to disclose all of their witness, but failed. For example, there are at least six or seven known fact character witnesses only for BREWER and FNTC that were not disclosed at the prior litigation. The response shall provide sufficient factual information for other part(ies) to evaluate the merits of that claim, including, if

necessary, a privilege log. Defendants failed to produce a privilege log and the required sufficient factual information. All “non-derivative” materials should have been provided.

RULING: DENY. A complete response has been provided. There is no need for a privilege log when the answer to the question is negatory.

216.1. Identify each denial of a material allegation and each special or affirmative defense in your PLEADINGS and for each: (a) state all facts upon which you base the denial or special or affirmative defense; (b) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and (c) identify all DOCUMENTS and all other tangible things, that support your denial or special or affirmative defense, and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT.

RESPONSE:

AMENDED RESPONSE: (summarized) seeks the disclosure of an attorney’s thoughts and impressions; is vague, ambiguous, overbroad and unintelligible as to what is meant by the term “material allegation,” thereby precluding a meaningful response; is burdensome and oppressive. “At this time, discovery is ongoing as to the facts, persons, and documents that will support the intended denials and affirmative defenses. Notably, Responding Party is unable to further respond to this interrogatory at this time because the plaintiff’s deposition has yet to be taken. Accordingly, this interrogatory is premature and inappropriate. Responding Party reserves all rights to supplement its response.”

ARGUMENT: The interrogatory is asking for specific information about facts, identification of denial and material allegation, special and affirmative defenses. The response is incomplete, non-responsive, evasive and non-code compliant. Responding parties were obligated to disclose all responsive information and documents but failed. For example, Responding Parties failed to identify and address all facts about their affirmative defenses, among other things. They must have addressed them. Moreover, Responding Parties failed to seek and receive a protective order and express authorization from third parties to disclose requested information and documents allegedly in third parties personal files and confidential business information or competitively sensitive information.

RULING: DENY. The amended response is over two pages in length. Plaintiff’s dissatisfaction with the answer provided is not a basis to require further response.

D. Validity of DocuSign Signatures

The validity and usage of electronic signature verification, including DocuSign, was addressed in the Court’s February 2, 2026 Minute Order at the hearing for plaintiff’s motion to compel further responses to Plaintiff’s Request for Production of Documents, Set One. The February Order stated wet-ink signatures were not required at this time because electronic verifications are permissible under the Uniform Electronic Transactions Act, subject to authentication. The Court does not find any circumstances, nor any compelling argument, to alter this decision.

E. Sanctions

Sanctions are authorized against a party who unsuccessfully brings a motion to compel further directed at interrogatories unless the Court finds the party made the motion with substantial justification or other circumstances make the sanction unjust. (Code Civ. Proc. § 2030.300, subd. (d).) Similarly, sanctions are mandatory against any party, person, or attorney who unsuccessfully makes or opposes a motion to

compel a further response unless other circumstances make the imposition of the sanction unjust. (Code Civ. Proc. § 2033.290, subd. (d).)

The court does not find circumstances rendering a sanction just therefore the request is DENIED. To the extent plaintiff seeks attorney's fees such request is DENIED. (*Musaelian v. Adams* (2009) 45 Cal.4th 512, 520 [party litigating his or her own case not entitled to fees].)

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If contested, parties may appear to argue the tentative ruling. The Court will then take the matter under submission, and the Court will prepare the Order after hearing.

09:00 AM

25-CIV-02045 NIZAR SHEHADEH VS. LUCID GROUP USA, INC.

LINE 5

NIZAR SHEHADEH
LUCID GROUP USA, INC.

ASHLEY J. YADDGO
AMY MACLEAR

PLAINTIFF NIZAR SHEHADEH'S MOTION FOR ATTORNEY FEES

TENTATIVE RULING:

Plaintiff Nizar Shehadeh's Motion for Attorney Fees, Costs, and Expenses, is GRANTED-in-part, as follows:

Reasonableness of Fees

A buyer who prevails in an action under the Song-Beverly Warranty Act is entitled to recover costs and expenses, including attorney's fees, reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code section 1794; *Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105.)

Plaintiff requests a lodestar fee award of \$21,912.50 and an additional \$4,658.86 for time spent reviewing the Opposition, preparing the Reply, and anticipated time to appear at the hearing. (Cline Decl., ¶3; Johnson Decl. ISO Reply, ¶7.) This represents 36.8 hours of attorney and staff time expended at hourly rates varying from \$275 to \$800. (Cline Decl., ¶7, Exh. 2.) Plaintiff presents evidence that the rates charged by each billing attorney are comparable those of similar experience levels in other Song-Beverly cases in the region and that similar rates have been approved in the past. (*Id.*, at ¶¶12-30.) Plaintiff's evidence is sufficient to show that the rates charged are the prevailing rate in the community for similar work by attorneys of comparable skill, experience, and reputation.

Defendant argues that fee rates should be reduced to a blended rate of \$350. (Opp. at p. 2:26 – 4:2.) However, most of the cases Defendants point to are from 2021 or older, are federal cases, and are not specific to this community. Defendants therefore have not rebutted Plaintiff's evidence that the rates charged are comparable those of similar experience levels in other Song-Beverly cases in the region.

Defendant next argues that Plaintiff's request contains inflated hours, based on improperly billing for clerical work disguised by block billing. For example, Plaintiff's paralegal billed .3 hours on March 24, 2025 to: "Receive and review court returned documents. Update file and notify attorney re: same. Review register of actions and update calendar. Notes to file re: same." (Cline Decl., ¶7, Exh. 2.) Defendant objects to this entry as clerical work billed as "0.3 hours for, in part, calendaring dates." The clerical element of updating the calendar that is noted within this work is minimal relative to the substantive work of reviewing documents and adding notes to the file, and therefore likely falls within a minimum increment of .1 billable hours. This does not warrant a reduction in the time billed. The same is true of the other objections for clerical work.

Defendant also objects to 8.3 hours billed throughout the case for, at least in part, legal research, arguing that it is unclear how it was necessary or useful here. (Opp. at p. 6:13-18.) This is a speculative

objection that second guesses the method by which counsel achieved a successful prosecution of Plaintiff's action without evidence that the time billed was unnecessary. A key issue in the case was the legal adequacy of Defendant's initial 998 offer to compromise, which was ultimately adjusted in Plaintiff's favor, and several legal research entries pertain to that issue. (Cline Decl., ¶7, Exh. 2.) Finally, Defendant objects to fee on fee billing, arguing that litigation over fees is not in the public interest. However, Plaintiff is not solely responsible for litigation over fees. Agreement could have been reached in lieu of litigation, and Defendant has opposed each element of Plaintiff's fees without making a strong showing for a reduction in the amount. There is no basis to restrict recovery for time necessarily billed in the recovery of fees.

Plaintiff's lodestar fee request is therefore reasonable in amount.

Multiplier

The amount of attorney fees awarded pursuant to the lodestar adjustment method may be either increased or decreased. (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5 240, 247.) Factors to be considered include novelty of the issues involved, skill displayed in presenting the case and quality of representation, extent to which the case precluded other work, contingent nature of the award, and quality of results obtained. (See *Cates v. Chiang* (2013) 213 Cal.App.4th 791; *Rey v. Madera Unified School Dist.* (2012) 203 Cal.App.4th 1223; *Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal.App.4th 819.)

Here, Plaintiff achieved a fairly strong result in the form of a \$77,877.72 judgment, demonstrating skill and quality in the representation he received. However, there is limited evidence of novel issues being presented with respect to the adequacy of Defendant's initial and updated 998 offers. The case required only limited, intermittent billing, and there is no evidence that other case work was precluded. The action was taken on a contingency basis, but it received a relatively quick buy-back offer, and most of the work necessitated was in seeking a somewhat limited adjustment to that offer, demonstrating that the likelihood of recovery was apparent from an early stage. On these facts, no adjustment to the lodestar amount is warranted.

Costs

The usual method to recover costs as a prevailing party is by filing a Memorandum of Costs pursuant to Cal. Rules of Court, rule 3.1700. Plaintiff's Memorandum of Costs filed October 30, 2025 requests \$611.13 in costs, consisting of \$559.50 in filing fees and \$51.63 for service of process costs. Plaintiff's Reply brief is supported by evidence that additional costs in the amount of \$388.86 were incurred in filing the present Motion. (Johnson Decl. ISO Reply, at ¶4.) These fees appear reasonable in amount and to have been necessarily incurred in the prosecution of the action, and amount to \$388.86 + \$611.13 = \$999.99 in total costs. However, Plaintiff's requested award seeks a total of \$634.76 in "Statutory Costs and Expenses." (Reply, at p. 8:10.) Costs are therefore awarded in that lesser amount.

The Motion is accordingly GRANTED-in-part in the amount of \$21,912.50 in lodestar attorney fees, \$634.76 in costs, and \$4,658.86 in fees for the Reply briefing and estimated time at the hearing for a total awarded of **\$27,206.12**.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

09:00 AM

25-CIV-08977

ADEM MUSSA VS. ARTICHOKE JOE'S

LINE 6

ADEM MUSSA
ARTICHOKE JOE'S

PRO PER
JAMES M. WAGSTAFFE

DEFENDANT: ARTICHOKE JOE'S DEMURRER TO COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Defendant Artichoke Joe's unopposed demurrer to Plaintiff Adem Mussa Nov. 24, 2025 Complaint is SUSTAINED WITH LEAVE TO AMEND as to the First, Third, Fourth, and Fifth Causes of Action. (Code Civ. Proc. § 430.10(e).)

Demurrer Analysis

The demurrer to the First Cause of Action (breach of contract) is SUSTAINED. (Code Civ. Proc. § 430.10(e).) "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal. App. 4th 1182, 1186.)

When the contract is oral, the plaintiff must plead the substance of the agreement and its relevant terms. Although plaintiff need not plead every detail, here, the nature of the alleged oral agreement is extremely unclear/vague. The Complaint alleges that on Dec. 6, 2024, the parties entered into an oral agreement, pursuant to which "defendant would pay plaintiff money won playing card games and money deposited." It further alleges that on Dec. 5, 2024 and Dec. 6, 2024, defendant breached the agreement "by not returning money deposited by plaintiff."

First, the allegation that the parties formed an oral contract are limited and very unclear. There are no facts explaining how defendant expressed its agreement/assent (who agree to the terms), no facts explaining what plaintiff means by having "deposited" money with the defendant, and no facts explaining what defendant orally agreed to do. For example, did defendant allegedly promise to return cash that plaintiff gave to defendant? Did Plaintiff deposit chips with defendant?

Further, the alleged breach on Dec. 5, 2024 is an impossibility. Defendant could not have breached an agreement on Dec. 5, 2024 if the contract did not come into existence until Dec. 6, 2024 as alleged.

The demurrer to the Third Cause of Action (fraud) is SUSTAINED. (Code Civ. Proc. § 430.10(e).) The Complaint purports to allege a fraud cause of action in the form of both (a) a false promise; and (b) a misrepresentation. Fraud, however, must be plead with specificity. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.) "General and conclusory allegations" do not suffice. (*West v. JP Morgan Chase Bank, N.A.* (2013) 214 Cal.App.780, 792.) Where the fraud is based on an alleged misrepresentation or a false promise, the specificity requirement means plaintiff must allege facts showing how, when, where, to whom, and by what means the false promise or representation was made. (*Id.* at 793.)

Here, fraud is not plead with specificity. The Complaint alleges that “defendant [falsely] promised to pay plaintiff money won playing card games and money deposited,” and that defendant misrepresented that “Plaintiff was not owed any money,” which Plaintiff alleges was false, because plaintiff had deposited money with defendant. But the Complaint does not allege any of the required details, such as who made the alleged false promise/misrepresentation, when, where, or by what means.

The demurrer to the Fourth Cause of Action (negligence) is SUSTAINED. (Code Civ. Proc. § 430.10(e).) To plead a negligence cause of action, plaintiff must plead facts showing that defendant owed plaintiff a legal duty, that defendant breached the duty, and resulting harm. (*Stokes v. Forty Niners Stadium Mgmt. Co. LLC* (2024) 107 Cal. App. 5th 1199, 1215.)

Here, plaintiff’s negligence claim is entirely conclusory. Plaintiff alleges that on Dec. 6, 2024, “defendant refused to give plaintiff money won playing card games and money deposited.” But these allegations do not explain or establish that defendant owed or breached a legal duty. Plaintiff provides no facts explaining when and why plaintiff deposited money with defendant, how much money he deposited, whether the money was held in an account, whether it was converted into chips, or otherwise converted, who (representing the defendant) refused to return the money, or why defendant had an obligation to return the money.

Accordingly, the barebones allegations here are too conclusory to state a negligence cause of action.

The demurrer to the Fifth Cause of Action (“intentional tort”) is SUSTAINED. (Code Civ. Proc. § 430.10(e).) This unidentified “intentional tort” cause of action alleges that “Defendant refused to give Plaintiff money won playing card games and money deposited.” California does not recognize a generic, stand-alone cause of action for “intentional tort.” Generally, a plaintiff must identify and plead a recognized cause of action and facts supporting its elements.

Further, although the Court must overrule a demurrer if the Complaint states a cause of action under any theory, regardless of how it is labeled, here, the Complaint does not set forth enough facts establishing the elements of any recognized tort cause of action. The Complaint provides no facts clearly explaining what intentional wrongdoing occurred, who committed it, why it was wrongful, and how the conduct satisfies the elements of a recognized tort cause of action.

Although the alleged facts somewhat resemble a conversion cause of action, pleading a conversion claim requires specific allegations regarding (1) plaintiff’s ownership or right to possession of specific property; (2) defendant’s wrongful dominion over that property; and (3) damages. To plead a conversion cause of action, plaintiff would need to provide more details about the nature of the money that defendant allegedly withheld from plaintiff. (Did the transaction involve chips? A player account? Cash held by the casino? Winnings that had become payable?)

The vague/conclusory allegations here leave the defendant guessing as to what defendant allegedly did that was wrongful.

Leave to Amend.

Generally, a plaintiff bears the burden of showing that the defects in the complaint are capable of being cured by amendment. (*Vanacore & Assocs., Inc. v. Rosenfeld* (2016) 246 Cal.App.4th 438, 454.) The Court, however, exercises a liberal policy with respect to permitting amendments to pleadings, particularly where, as here, the Complaint has not been previously amended. Accordingly, despite the lack of an opposition brief, and considering plaintiff's self-represented status, the Court sustains the demurrer with leave to amend.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

09:00 AM

25-CIV-09615 MIHOKO WARD VS. KYBA BAOHOANG THAI

LINE 7

MIHOKO WARD
KYBA BAOHOANG THAI

PRO PER

PLAINTIFF MIHOKO WARD'S MOTION / RENEWED APPLICATION FOR ORDER PERMITTING ALTERNATIVE SERVICE

TENTATIVE RULING:

Plaintiff's Renewed Application for Order Permitting Alternate Service pursuant to Code of Civil Procedure ("CCP") Section 413.30, is GRANTED in part.

Plaintiff's motion was primarily directed to allow service of the Summons and Complaint by alternate service, which is now moot as a Proof of Service ("POS") – Civil was filed on 6/3/2026. Though not the correct form for service of a summons and complaint, the Court will accept it as such. However, the 6/3/26 POS reflects personal service at the main courthouse located at 400 County Center, Redwood City, CA, which cannot be utilized as a mailing address for this defendant.

Plaintiff's motion and supporting declarations demonstrates reasonable diligence at past service attempts, that there is no known current mailing address, and that the only remaining service method reasonably calculated to give future notice to the Defendant is by electronic mail or other electronic technology which is now allowed by code. CCP § 413.30(a)(1).

Therefore, as defendant has now been personally served, any future service in this matter can occur by electronic mail to defendant's last known email address: kbthai@pm.me and by text message to: (415) 888-5588. *See*, CCP § 413.30(a)(1); and CRC Rule 2.251.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the Order of the Court by Minute Order, and the Court dispenses with the need for any Order after hearing on this motion.

09:00 AM

25-CIV-09615 MIHOKO WARD VS. KYBA BAOHOANG THAI

LINE 8

MIHOKO WARD
KYBA BAOHOANG THAI

PRO PER

PLAINTIFF MIHOKO WARD'S MOTION FOR PRELIMINARY INJUNCTION, REQUEST FOR ORDER SHORTENING TIME AND REQUEST FOR REMOTE APPEARANCE

TENTATIVE RULING:

Plaintiff Mioko Ward's Motion for Preliminary Injunction is DENIED.

Plaintiff's Request for Order Shortening Time is summarily DENIED as moot.

Plaintiff's Request for Remote Appearance for this hearing is GRANTED.

Legal Authority

On a motion for preliminary injunction the court evaluates two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits of the claim at trial, and (2) the interim harm the plaintiff would be likely to suffer if the injunction is denied as compared to the harm that the defendant would be likely to suffer if the injunction is granted. (*Amgen Inc. v. Health Care Services* (2020) 47 Cal.App.5th 716, 731.) The weighing of these harms involves consideration of the inadequacy of other remedies, the degree of irreparable harm, and the necessity of preserving the status quo. (*Donahue Schriber Realty Group, Inc. v. Nu Creation Outreach* (2014) 232 Cal.App.4th 1171, 1177.) The general purpose of an injunction is the preservation of the status quo until a final determination of the merits of the action. (*Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 528.)

A preliminary injunction is not itself a cause of action. "[O]rdinarily, a preliminary injunction may be sought only when the underlying cause of action on which the provisional remedy rests is presented for decision through the pleadings." (*Department of Fair Employment and Housing v. Superior Court of Kern County* (2020) 54 Cal.App.5th 356, 384-385, citing *Moreno Mut. Irr. Co. v. Beaumont Irr. Dist.* (1949) 94 Cal.App.2d 766, 778 ["A preliminary injunction is warranted only if there is on file a complaint which states a sufficient cause of action for injunctive relief of the character embraced in the preliminary injunction."]); see generally Moore & Thomas, Cal. Civ. Practice (2020) Procedure, § 16:119.)

Injunctions are generally classified as either "prohibitory" or "mandatory." "[A]n injunction is prohibitory if it requires a person to refrain from a particular act and mandatory if it compels performance of an affirmative act *that changes the position of the parties.*" *Davenport v. Blue Cross of Calif.* (1997) 52 Cal.4th 435, 446-448 (emphasis added) (rejecting "preservation of status quo" as test for prohibitory injunction). Mandatory injunctions are *rarely* granted: "The granting of a mandatory injunction pending trial is not permitted except in *extreme* cases where the right thereto is *clearly* established." *Teachers Ins. & Annuity Ass'n v. Furlotti* (1999) 70 Cal.App.4th 1487, 1493.

Application

Here, Plaintiff's motion fails on multiple levels.

First, Plaintiff's complaint does not present a cause of action on which a provisional remedy is proper. Plaintiff's complaint alleges four causes of action for (1) Fraud and Intentional Misrepresentation, (2) Conversion, (3) Breach of Contract, and (4) Intentional Infliction of Emotional Distress. Complaint filed 12/8/2025. There is no cause of action for injunctive relief, nor any cause of action of the type where typically injunctive relief may be granted. See, *Department of Fair Employment and Housing v. Superior Court of Kern County* (2020) 54 Cal.App.5th 356, 384-385, citing *Moreno Mut. Irr. Co. v. Beaumont Irr. Dist.* (1949) 94 Cal.App.2d 766, 778; see also, CCP § 526.

Second, the motion fails to provide an adequate evidentiary basis to allow provisional relief. The motion seeks to enjoin Defendant "from transferring, concealing, dissipating, encumbering, or otherwise disposing of assets up to the amount in controversy, pending trial of the action, in order to preserve the status quo." Mtn., pg. 2, lines 1-3 (emphasis added). However, the Declaration of Mihoko Ward filed 12/15/2025 in support of this motion (hereinafter the "Ward Decl.") fails to identify a single quantifiable asset of Defendant, that Defendant might transfer, conceal, encumber, etc. The declaration attempts to establish alleged personal loans totaling \$44,000.00, and alleged misappropriation of another \$186,000.00 by Defendant. Ward Decl. ¶ 3. Apparently, this was when Plaintiff and Defendant were in a personal relationship and co-habiting from January 2023-March 2024. Complaint, ¶ 9 and page 8 (no line numbers, but between ¶¶ 19-20). In other words, Plaintiff provides zero evidentiary basis that funds that may have existed at some point (whether by loan or misappropriation) in January 2023-March 2024, are even still available at the time of this motion in June of 2026, or two to three years later.

Third, Plaintiff provides zero legal authority for the proposition that some unidentified injunctive relief is available for claims that largely are tantamount to a typical debt collection case.

Fourth and finally, Defendant was just personally served with the Summons and Complaint in this matter on June 2, 2026. POS filed 6/3/2026. Defendant's time to appear is thus still running. There is an insufficient showing that (1) plaintiff would prevail on the merits of the claim at trial, and (2) the Court is unable to weigh the interim harm to the plaintiff versus the interim harm to the defendant on the current record. See, *Amgen Inc. v. Health Care Services* (2020) 47 Cal.App.5th 716, 731.

Accordingly, Plaintiff Mioko Ward's Motion for Preliminary Injunction is DENIED.

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If the tentative ruling is uncontested, it shall become the Order of the Court by Minute Order, and the Court dispenses with the need for any Order after hearing on this motion.

NO MATTERS ON
UNLAWFUL DETAINER - LAW & MOTION CALENDAR

